

Court No. - 1

Case :- WRIT - C No. - 20279 of 2019

Petitioner :- Hanuman Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Suresh Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ramesh Sinha,J.

Hon'ble Vivek Varma,J.

We do not find any urgency in the matter.

Let this matter be listed on 8th July, 2019 before the appropriate Court in top ten cases.

(Vivek Varma, J.) (Ramesh Sinha,J.)

Order Date :- 14.6.2019

Ajeet

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Counsel for Petitioner :- Suresh Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri Suresh Singh, learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for respondent nos. 2,3 and 4 and learned Standing Counsel for the State respondents.

By means of present writ petition, the petitioner has prayed for a writ of mandamus directing respondent no. 2 to 4 to correct the petitioner's electricity bill and restore the electricity connection of the petitioner.

Sri Mahboob Ahmad, Advocate appearing on behalf of the respondent nos. 2,3 and 4 has placed reliance before this Court upon the corrected bill given by the department and which has been received on 1.6.2019 by the petitioner himself. From the perusal of the record, we find that the said bill has been annexed alongwith writ petition at page 46 of the paper book.

Learned counsel for the respondent further submits that the petitioner has remedy to approach the higher authority against the corrected bill under the provision as contained vide clause 7.10 of the U.P. Electricity Supply Code, 2005.

To the above legal argument advanced by learned counsel for the respondent, learned counsel for the petitioner does not dispute.

In such view of the matter, writ petition is accordingly disposed of with direction that in case petitioner approaches before the higher authority under the aforesaid provision, the authority shall consider the same and pass appropriate order by means of reasoned and speaking order within period of four weeks from the date of production of certified copy of this order.

Order Date :- 22.8.2019

Sanjeev

(Ajit Kumar,J.) (Ramesh Sinha,J.)